IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an Appeal made under Section 331 of the Code of Criminal Procedure Act No.15 of 1979 read with Article 138(1) of the Constitution of the Democratic Socialist Republic of Sri Lanka.

Court of Appeal Case No. CA/HCC/ 0188-0189/2023
High Court of Colombo Case No. HCB/1961/2013

1. Marakkala Manage Sampath Priyankara
2. Jayaweera Arachchige Don Deshapriya Ranasinghe

Accused-Appellants

Vs.

The Director General
Commission to Investigate
Allegations of Bribery or Corruption
No.36, Malalasekera Mawatha,
Colomb0-07.

Complainant-Respondent

BEFORE : **P. Kumararatnam, J.**

R. P. Hettiarachchi, J.

COUNSEL : **Anil Silva, PC with Anjana Abeyratne for the 1st Appellant.**
A.S.M. Perera, PC with Janani De Silva for the 2nd Appellant.
Asitha Antony, Deputy Director General, Bribery Commission for the Respondent.

ARGUED ON : **19/01/2026**

DECIDED ON : **24/03/2026**

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JUDGMENT

P. Kumararatnam, J.

The above-named Accused-Appellants (hereinafter referred to as the Appellants) were indicted by the Director General of the Bribery Commission in the High Court of Colombo.

1. Between 01st August 2011 and 21st September 2011 at Bandarawela, which is within the jurisdiction of this Court, the 1st accused being a public servant, to wit, a Member of the Municipal Council of Bandarawela did solicit a gratification of a sum of Rs. 2,000,000/- from Sawkenda Mudiyanselage Piyasena as an inducement or reward

to do an official act, to wit, to take steps to handover a Boutique at the Vegetable Wholesale Market situated within the area of the Bandarawela Municipal Council and thereby had committed an offence punishable under Section 19(b) of the Bribery Act.

2. At the same time and place and in the course of the same transaction referred to in Charge 1, the 1st accused being a public servant, to wit, a Member of the Municipal Council of Bandarawela did solicit a gratification of a sum of Rs. 2,000,000/- from Sawkenda Mudiyanselage Piyasena and thereby committed an offence punishable under Section 19(c) of the Bribery Act as amended.
3. On 22nd September 2011 at the same place and in the course of the same transaction referred to in Charge 1, the 1st accused being a public servant, to wit, a Member of the Municipal Council of Bandarawela did accept a gratification of a sum of Rs. 800,000/- from Sawkenda Mudiyanselage Piyasena as an inducement or reward to do an official act, to wit, to take steps to handover a Boutique at the Vegetable Wholesale Market situated within the area of the Bandarawela Municipal Council and thereby committed an offence punishable under Section 19(b) of the Bribery Act.
4. At the same time and place and in the course of the same transaction referred to in Charge 3, the 1st accused being a public servant, to wit, a Member of the Municipal Council of Bandarawela did accept a gratification of a sum of Rs. 800,000/- from Sawkenda Mudiyanselage Piyasena and thereby committed an offence punishable under Section 19(c) of the Bribery Act as amended.
5. At the same time and place and in the course of the same transaction referred to in Charge 3, the 2nd accused had abetted the 1st accused to commit the offence referred to in charge 3 and as a consequence of the said abatement, the 1st accused had committed the said offence and thereby the 2nd accused committed an offence punishable under

Section 19(b) of the Bribery Act read with Section 25(2) of the Bribery Act.

6. At the same time and place and in the course of the same transaction referred to in Charge 4, the 2nd accused had abetted the 1st accused to commit the offence referred to in charge 4 and as a consequence of the said abatement the 1st accused had committed the said offence and thereby the 2nd accused committed an offence punishable under Section 19(c) of the Bribery Act read with Section 25(2) of the Bribery Act as amended.

The prosecution had called 09 witnesses and marked documents P1 to P7 and closed their case. Having been satisfied that there is a case to be answered by the Appellants, the learned High Court Judge had called for the defence. Both Appellants had given evidence from the witness box and had marked productions V1 to V7 and closed their case.

The learned High Court Judge by his judgment dated 28.10.2022 found the 1st Appellant guilty of Count 2 and 4 and had acquitted the 1st Appellant from Counts 1 and 3.

The learned High Court Judge found the 2nd Appellant guilty of Count number 6 and had acquitted him from Count number 5.

The learned Judge of the High Court of Colombo had imposed the following sentences on the Appellants.

For the 2nd Count the 1st Appellant was sentenced to 05 years rigorous imprisonment with a fine of Rs.5,000/- subject to a default sentence of 01-year simple imprisonment.

For the 4th Count the 1st Appellant was sentenced to 05 years rigorous imprisonment with a fine of Rs.5,000/- subject to a default sentence of 01-year simple imprisonment. Additionally, the 1st Appellant was imposed a fine of Rs.800,000/- with a default sentence of 01-year simple imprisonment.

The Court further ordered that the jail sentences imposed on Counts 2-4 against the 1st Appellant to run consecutively.

For the 6th Count the 2nd Appellant was sentenced to 05 years rigorous imprisonment with a fine of Rs.5,000/- subject to a default sentence of 01-year simple imprisonment.

Being aggrieved by the aforesaid convictions and sentences, the Appellants preferred this appeal to this court.

The Appellants were present in this Court on the day of the argument as they were on bail pending appeal granted by the High Court.

Background of the case *albeit* **briefly is as follows:**

According to PW1, Piyasena had been a businessman in the Bandarawela Town but had handed over his shop to another person. The Bandarawela Municipal Council had demolished this shop in order to put up a shopping complex. As the shops which were constructed by the Bandarawela Municipal Council were going to be rented out, PW1 also tried to get one unit from the shopping complex. When he met the Mayor of the Bandarawela Municipal Council, he was informed that all the shops in the shopping complex had already been allocated.

Having come to know that he could secure a shop through the 1st Appellant who was a member of the Bandarawela Municipal Council, he had met the 1st Appellant at the Municipality. The 1st Appellant had then solicited 2.2 million Rupees from him to secure a unit in the shopping complex. The 1st Appellant had then told PW1 that he had to give one million Rupees to the Mayor, and that the balance would be shared among the Appellants.

PW1 had lodged a complaint with the Bribery Commission and a trap was arranged. According to the prosecution, the 1st Appellant had accepted Rs.800,000/- from the complainant.

Both Appellants had given evidence from the witness box. According to the 1st Appellant, as the Complainant wanted a shop, he had introduced a person called Daya Punchihewa, a businessman who wanted to lease out his shop to another person. To enter into an agreement, the complainant and Daya Punchihewa had been taken to the office of Ruwan Basnayake, Attorney -at-Law. As the documents were not prepared, the Complainant was asked to come on the following day with Rs.800,000/- in cash and three blank cheques to be given to Daya Punchihewa. On the following day, the 1st Appellant was taken to a three-wheeler which was parked close to the Bandarawela Municipal Council, where the Appellant alleges that Rs.800,000/- was forcibly given to him and that he was arrested. Subsequently, the 2nd Appellant too was arrested.

On behalf of the 1st Appellant, the following Grounds of Appeal were raised:

1. Has the prosecution proved the case beyond a reasonable doubt?
2. Has the Appellant's evidence been rejected without reasonable grounds?
3. Have the matters favourable to the Appellant not been evaluated properly by the learned High Court Judge?

The Learned President's Counsel for the 2nd Appellant informed the court that he too sails with the appeal grounds put forward by the 1st Appellant.

As all the grounds of appeal raised by the Learned President's Counsel for the 1st Appellant are interconnected, I will hereby consider all the grounds of appeal together as follows.

In a criminal trial, it is incumbent on the prosecution to prove the case beyond a reasonable doubt. There is no burden on the Appellant to prove his innocence. This is the "Golden Thread" as discussed in **Woolmington v. DPP** [1935] A.C.462. In this case Viscount Sankey J held that:

> *"Throughout the web of the English Criminal Law one golden thread is always to be seen, that it is the duty of the prosecution to prove the*

> *prisoner's guilt…… If, at the end of and on the whole of the case, there is a reasonable doubt, created by the evidence given by either the prosecution or the prisoner…..the prosecution has not made out the case and the prisoner is entitled to an acquittal."*

In the case of **Shivaji Sahebrao Bobade & Anr. v. State of Maharashtra** AIR 1973 SC 2622, the Supreme Court of India held that:

> "*the cherished principles of the golden thread of proof beyond reasonable doubt which runs through the web of our law should not be stretched morbidly to embrace every hunch and degree of doubt. … Only reasonable doubts belong to the accused. Otherwise, any practical system of justice will break down and lose credibility with the community.*"

At the very outset, the learned President's Counsel for the 2nd Appellant informed the Court that he would agree with the argument put forward by the Learned President's Counsel for the 1st Appellant.

Each charge delves on the basis that the 1st Appellant had solicited and accepted a bribe from the complainant, PW1 in order to secure a shop for him in the vegetable whole sale market. The 2nd Appellant was charged for aiding and abetting the 1st Appellant to accept the money from the Complainant.

As stated earlier the position held by the 1st Appellant was that he had only facilitated the Complainant to purchase a shop belonging to one Daya Punchihewa.

According to PW1, Piyasena had gone to the Ornamental Fish Shop belonging to the 1st Appellant's father along with two Bribery Officers on 22.09.2011. There a discussion had taken place, and the 1st Appellant had then left. At that time, no solicitation was made or any gratification was accepted.

An Investigation Officer of CIABOC was selected as the decoy, who is PW2 in this case. Notably, in his evidence, he did not mention about the presence of two bribery officers at the Ornamental Fish Shop.

After waiting for some time, as the 1st Appellant had not come, they had left the place. After a short while, PW1 had received a call from the 1st Appellant requesting him to come to the Bandarawela Urban Council Office. There they met the 2nd Appellant who had allegedly asked them to give the money to the 1st Appellant.

According to the evidence of PW2 the decoy, after receiving a call the Complainant and the 1st Appellant had gone to the office of Attorney-at-Law Ruwan Kumara Basnayake, who is PW08 in this case. The decoy was asked not to proceed to the attorney's office by the investigation officer. As such, he was unaware as to what had taken place there. After returning from the attorney's office with the 1st Appellant, the Complainant had told the decoy that they could not finalise the transaction. As such, the 1st Appellant had told the Complainant to come on the following day during the evening, with Rs.800,000/- cash and three blank cheques. As per the request by the decoy, the parties agreed to come in the morning. Although the money was brought on that day, no acceptance had taken place.

The relevant portion is re-produced below:

<u>Pages 409-410 of the brief.</u>

ප්‍ර : එලෙස දැනුම් දීමෙන් පස්සේ සාක්ෂිකරු මොකක්ද ගත්ත පියවර ?

උ : මේ සිදුවීම පො.ප. ගුණවර්ධන මහත්තයා කියලා පැමිණිලිකරුටත් කියලා මාත් පැමිණිලිකරුත් ඔහුගේ ත්‍රීරෝද රථයෙන් රුවන් බස්නායක මහත්තයාගේ කාර්යාලය කිට්ටුවට ගියා.

ප්‍ර : රුවන් බස්නායක මහත්තයාගේ කාර්යාලය කොහේද පිහිටලා තියෙන්නේ ?

උ : බණ්ඩාරවෙල නගරයේ.

ප්‍ර : ඒ නොතාරිස් මහත්තයාගෙ කාමරය ඇතුලට තමන්ලා ගියා ද ?

උ : නෑ ස්වාමීනි. කාර්යාලයට යනකොට ගුණවර්ධන මහත්තයා මට කිව්වා ත්‍රීරෝද රථයේ සල්ලි ටික මට තියාගෙන ඉන්න කියලා පැමිණිලිකරු පමණක් ඒ නොතාරිස් මහත්තයා හම්බවෙන්න යවන්න කිව්වා.

Page 445 of the brief.

ප්‍ර : නමුත් 1 වන විත්තිකාරයා කිව්වේ නීතිඥ මහත්මයෙක් ගාවට ගිහිල්ලා ඔබගේ කටඋත්තරයේ පසුගිය වතාවේ, ගිහිල්ලා පරණ අයිතිකාරයාගෙන් දිවුරුම් පෙත්සමක් ගන්න ඕනෑ කියලා නේ කිව්වේ ?

උ : ගිවිසුමක් අත්සන් කරලා කරනවා කිව්වා ස්වාමිනී.

ප්‍ර : ඒක තමයි කිව්වේ, එතකොට ලියුම ගන්න ඕනෑ පරණ අයිතිකාරයාගෙන් කියන එක කිව්වාම ඒ සඳහා නීතිඥ මහත්මයෙක් ඉස්සරහත් ගන්න ඕනෑ කියලා කිව්වා ?

උ : ලඟට යන්න ඕනෑ කිව්වා ස්වාමිනී.

PW8, the Attorney-at-Law, in his evidence confirmed that the Complainant had come to his office with a person called Dayananda to transfer a shop owned by Dayananda to the Complainant. Further, he confirmed the presence of the 1st Appellant at that occasion.

The relevant portion is re-produced below:

Page 549 of the breief.

ප්‍ර : 2011.09.21 වෙනි දින සවස මහත්මයාගේ කාර්යාලයට මෙම අල්ලස් කොමිසමට දුන් ප්‍රකාශයට අදාලව පැමිණි පුද්ගලයන් මතක හැටියට කවුද ?

උ : මගේ මතකයේ හැටියට දයානන්ද කියන පුද්ගලයෙක් පැමිණියා. දයානන්ද පුංචි හේවා. අනිත් තැනැත්තා පියසේන විය යුතුයි සහ ඒ අතර තව සේවාදායකයන් ගොඩක් හිටියා ඒ අතර සම්පත් කියන මහත්මයෙකුත් හිටියා.

ප්‍ර : ඔය දයානන්ද කියන තැනැත්තා මහත්මයාගේ කාර්යාලයට පැමිණියේ මහත්මයාගෙන් කුමන කාර්යයක් කර ගැනීමටද ?

උ : දයානන්ද කියන මහත්මයා මට ප්‍රකාශ කර සිටියා ඔහුට බණ්ඩාරවෙල නගර සභාවට අයත් කඩයක් පවතින බවත්, එය පියසේන නැමැත්තාට පැවරීමක් කළ යුතු බවත් ඒ සම්බන්ධයෙන් නිතී උපදෙස් මාගෙන් විමසා සිටියා.

But the Complainant in his evidence completely denied that he had gone to the attorney's office. The relevant portion is re-produced below:

<u>Pages 298-299 of the brief.</u>

ප්‍ර : ගරු අධිකරණයට තමුන් දිවුරලා සාක්ෂි දෙන්නේ නේද ?

උ : ඔව්.

ප්‍ර : ගියේ නැද්ද නීතිඥ මහත්මයෙකුගේ කාර්යාලයට රුවන් බස්නායක කියලා, කියන්න ගරු උතුමාණන්ට හරියටම ?

උ : අපි ගියේ නැහැ.

ප්‍ර : අපි ගියාද නොවේ මම අහන්නේ මහත්මයා ගියාද නැද්ද ?

උ : මම ගියේ නැහැ.

As the Complainant denied going to the office of the attorney, the defence had marked very vital contradictions to support their version.

The relevant portion is re-produced below:

<u>Pages 300-304 of the brief.</u>

ප්‍ර : බලන්න 2011.09.23 වැනි දින සාක්ෂිකරු විසින් අල්ලස් දෙපාර්තමේන්තුවට දෙන ලද කට උත්තරයේ පිටුව මෙම නඩු වාර්තාව අනුව 47 වැනි පිටුව. ඉහල සිට පහලට 12 වැනි පේලිය කියවයි. මහත්මයා මෙහෙම කිව්වා ද ? "ඊටපස්සේ මම හසාන් මහත්මයාත් එක්ක ගිහින් බස්නායක මහත්මයාගේ ඔෆිස් එකට ගියා, බණ්ඩාරවෙල නගර සභාව ඉස්සරහ පාර අයිනේ ත්‍රීවීල් එක නතර කරලා" කියලා ඔබතුමා කට උත්තරයක් දිලා තියනවා 2011.09.23 වැනි දින ඔබ ගරු උතුමාණන්ට නැවත අද කියනවාද ඔබ බස්නායක මහතා හමු වෙන්න ගියේ නැහැ කියලා ?

උ : හරියට මතක නැහැ.

ප්‍ර : දැන් ඉස්සෙල්ලා කිව්වානේ ගියේ නැහැ කියලා, මහත්මයා දන්නවා මේක ඉතාම වැදගත් සිද්ධියක් ? ඔබතුමා කියන්න බස්නායක නීතිඥතුමා ඔබව අඳුරනවානේ හොඳටම ?

උ : ඒ මහත්තයා හොඳට අඳුරනවා. මම ගියේ නැහැ.

ප්‍ර : එහෙම නම් මේ සිද්ධිය වෙලා මේ දෙවැනි දවස, දෙවැනි දවසත් නොවෙයි 22 වැනිදා තමයි තමුන්ලා සම්පත් මන්ත්‍රීතුමාගේ කාර්යාලයට මුදල් දුන්නා කියන්නේ, 23 වැනිදා දවසකට පස්සේ දීපු කට උත්තරයේදී බස්නායක නීතිඥතුමා හම්බ වෙන්න ගියා කියපු එක අද ඔබතුමා කියන්නේ ගියේ නැහැ කියලා ?

උ : මට ඒක මතක නැහැ.

- ගරු උතුමාණනී, "ඊටපසු මම හසාන් මහත්මයා එක්ක ගිහින් බස්නායක මහත්මයාගේ ඔෆිස් එකට ගියා කියන කොටස " පරස්පරවිරෝධීතාවයක් ලෙස ලකුණු කරනවා.

ප්‍ර : එපමණක් නොවේ මහත්මයා ඔබතුමා ඒදිනම "ඊට පස්සේ මම සම්පත් මන්ත්‍රීතුමා එක්ක බස්නායක මහත්මයාගේ ඔෆිස් එකට ගියා" ඔන්න නැවතත් ඔබතුමාගේ කට උත්තරයේ, මේ දවස් දෙකකට පස්සේ ?

උ : මතක නැහැ.

ප්‍ර : ඊලඟට එහෙම නම් මම ඔබතුමාට යෝජනා කලොත් සම්පත් මහත්මයා එක්ක බස්නායක මහත්මයාගේ කාර්යාලයට ගියා කියලා කිව්වොත් ඔබතුමා කියන්නේ ඒක ගරු උතුමාණන්ට හරි කියලා ද, වැරදියි කියලා ද ?

උ : මට මතක නැහැ.

ප්‍ර : මම තමුන්ට කියනවා තමුන් ගරු අධිකරණයට කිසිම ගෞරවයක් නැතුව අසත්‍ය සාක්ෂි දෙන සාක්ෂිකරුවෙක්, තමුන්ට මේ සිද්ධිය වෙලා පහුවෙනිදා, ඒ සිද්ධිය වෙච්ච දවසට ඉස්සෙල්ලා දවසේ නීතිඥතුමාගේ කාර්යාලයට ගියා කියන එක තමුන්ට මතක නැහැ තමුන් උවමනාවෙන් අධිකරණය නොමඟ යනවා කියලා, මම තමුන්ට යෝජනා කරනවා තමුන් තවදුරටත් කියලා තියනවා ?

ඊලඟට කියන්න බලන්න බස්නායක මහත්මයාගේ ඔෆිස් එක තියෙන්නේ කොහේද ?

උ : නගර සභාව ඉස්සරහ.

ප්‍ර : නගර සභාව ඉස්සරහ මේ ගොඩැගිල්ලේ, උඩ තට්ටුවේ ද, යට තට්ටුවේ ද ?

උ : උඩ තට්ටුවේ.

ප්‍ර : ඔබතුමා එතකොට එහෙම නම් බලන්න මෙහෙමවත් කියලා නැද්ද කියලා " ඒ ඔෆිස් එක තිබෙන්නේ බිල්ඩින් එකේ උඩ තට්ටුවේ " කියලා ඔබතුමා පිළිගන්නවා, බස්නායක මහත්මයාගේ ඔෆිස් එක තියෙන්නේ නගර සභාව ඉස්සරහ කියලා ?

උ : අපි හැම වෙලාවේම දකින නිසා පිළි ගන්නවා.

ප්‍ර : ඒක තමයි ඔබතුමා එදා ගිය නිසා හොඳටම දන්නවා ඒක උඩ තට්ටුවේ තියෙන්නේ කියන එක ?

උ : දැනටත් උඩ තට්ටුවේ තියෙන්නේ.

ප්‍ර : එපමණක් නොවේ මහත්මයා " අපි දෙන්නා එතනට යනකොටත් බස්නායක මහත්මයා මගෙන් ඇහැව්වා අයිඩින්ටි කාඩ් එක ගෙනාවාද කියලා, ඒකට මම කිව්වා අයිඩින්ටිය ගෙනාවේ නැහැ" කියලා ඔන්න ගරු උතුමාණන්ට කියන්නේ මේ කියපු කට උත්තරය අනුව ඔබ ගියේ නැහැ කියලා බස්නායක මහත්මයාගේ කාර්යාලයට ?

උ : මට මතක නැහැ.

ප්‍ර : ගියේ නැහැ ?

උ : නැහැ.

ප්‍ර : මම එම කොටස ලකුණු කරනවා, ඊට පස්සේ මම සම්පත් මන්ත්‍රීතුමා එක්ක බස්නායක මහත්මයාගේ ඔෆිස් එකට ගියා, ඒ ඔෆිස් එක තිබුනේ බිල්ඩින් එකේ උඩ තට්ටුවේ, අපි දෙන්නා එතනට යනකොටත් බස්නායක මහත්මයා මගෙන් ඇහැව්වා අයිඩින්ටි කාඩ් එක ගෙනාවාද කියලා, ඒකට මම කිව්වා අයිඩින්ටිය ගෙනාවේ නැහැ කියලා" උතුමාණනි, මම එම කොටස වී. 6 වශයෙන් ලකුණු කරනවා පරස්පරවිරෝධිතාවයක් වශයෙන්.

The denial that the Complainant did not go to the attorney's office contradicts the evidence given by PW2, the decoy and PW8, the Attorney-at-Law which certainly affects the credibility of the witness.

The President's Counsel highlighted another glaring contradiction between the evidence of PW1 and PW2. According to PW1, the money which was allegedly given to the 1st Appellant, was handed over to him by a bribery officer when they were seated in the three-wheeler.

The relevant portion is re-produced below:

Page 343 of the brief.

ප්‍ර : දැන් මහත්මයා අර උදේ හම්බ වුනා කිව්වානේ, සල්ලි දෙන්න කියලා කිව්වා, සල්ලි දුන්නාද?

උ : සල්ලි තිබුනේ තව මහත්මයෙක් අතේ. ඒ මහත්තයා මට සල්ලි ටිකක් දුන්නා ගැනලා දෙන්න කියලා සම්පත් මන්ත්‍රීතුමාට. ගැනලා මමත් හසන් මහත්තයාත්, අර මහත්තයාට දුන්නා.

But PW2, the decoy, took up the position that the said money was with him until the conclusion of the raid.

The relevant portion is re-produced below:

Page 416 of the brief.

ප්‍ර : ඒ මුදල් කළු බෑග් එකකට දාගෙන කා භාරයේ ද තිබුණේ ?

උ : මා භාරයේ තිබ්බෙ.

ප්‍ර : මේ සල්ලි තමා භාරයේ කොපමණ පමණ වෙලාවක් යනකන් තිබුණාද දළ වශයෙන් ?

උ : වැටලීම සිදුවන තුරු මං ගාව තිබ්බා.

The contradiction highlighted by the defence too will also, without a doubt, affect the credibility of the prosecution witnesses and certainly strengthen the version taken up by the defence in this case.

In a bribery case, the factor that determines whether the prosecution will succeed or fail is the credibility of the complainant. As bribery would mostly entail a consensual, secretive act which would not involve any direct physical evidence, the case would depend on the credibility of the witness's word as opposed to the accused. In cases with non-credible complainants, it would be difficult to establish the necessary chain of evidence, therefore this would adversely affect the possibility of securing a conviction.

In **Kalinga Padmatilaka v The Director General of Commission to Investigate Allegation of Bribery or Corruption** SC Appeal 99/2007 decided on 30.07.2009 the Supreme Court held that:

> *"It has to be stressed here that credibility of prosecution witnesses should be subject to judicial evaluation in totality and not isolated scrutiny by the Judge. When witnesses make inconsistent statements in their evidence either at one stage or at 2 stages, the testimony of such witnesses is unreliable and in the absence of special circumstances, no conviction can be based on the testimony of such witnesses. On the other hand, one cannot be unmindful of the proposition that Court cannot mechanically reject the evidence of any witness.*

In **Gurcharan Singh V. State of Haryana -** Criminal Law Journal 1994 (2) 171 the Court held that:

> *"Where the material witnesses make inconsistent statements in their evidence on material particulars, the evidence of such witnesses becomes unreliable and unworthy of credence, thus making the prosecution case highly doubtful."*

In the case of **State of Uttar Pradesh v. M. K. Anthony** [AIR 1985 SC 48] the court held that:

> *"While appreciating the evidence of a witness, the approach must be whether the evidence of the witness read as a whole appears to have a ring of truth. Once that impression is formed, it is undoubtedly necessary for the court to scrutinise the evidence more particularly keeping in view the deficiencies, draw-backs and infirmities pointed out in the evidence as a whole and evaluate them to find out whether it is against the general tenor of the evidence given by the witness and whether the earlier evaluation of the evidence is shaken as to render it unworthy of belief. Minor discrepancies on trivial matters not touching the core of the case, hyper-technical approach by taking sentences torn*

> *out of context here or there from the evidence, attaching importance to some technical error committed by the investigating officer not going to the: root of the matter would not ordinarily permit rejection of the evidence as a whole.....Even honest and truthful witnesses may differ in some details unrelated to the main incident because power of observation, retention and reproduction differ with individuals. Cross examination is an unequal duel between a rustic and refined lawyer."*

The prosecution had mainly relied on the evidence given by PW1 and PW2 to prove the charges levelled against the Appellants. However, upon examination of their evidence, it is clear that PW1 and PW2 are unreliable witnesses. PW1 had completely suppressed the fact about going to the attorney's office in order to enter into a transfer agreement with a person called Dayananda who owned a shop in the Bandarawela Municipality premises. Unfortunately, the said Dayananda was dead before he could give evidence in this case.

These contradictions are of great importance given the fact that the Appellants had consistently taken the stance that they had merely facilitated the Complainant to purchase a shop belonging to Dayananda.

Although the above-mentioned contradictions were not marked, it is the duty of the Trial Judge to consider such evidence, which is favourable to the Accused, with utmost care.

In criminal trials, judges bear the responsibility and fundamental duty of ensuring a fair trial. Doing so requires a careful consideration of all the evidence available, including exculpatory evidence, which refers to evidence which would be favourable to the defence. This duty also entails maintaining the presumption of innocence and ensuring that an accused is not convicted merely due to a one-sided presentation of the case.

Furthermore, it is pertinent to note that right to a fair trial that every accused has. As such, according to the principles of a fair trial, the accused's innocence or guilt in respect of the alleged crime will be ascertained by way of the legal procedure set in place to guarantee the fair and just treatment of individuals accused of crimes. This includes the right to a hearing by an independent and impartial court within a reasonable time period, the presumption of innocence until proven guilty, the right to legal representation, the ability to present one's case and the right to question and cross examine evidence against them. While this right is an internationally recognised and respected human right, they act as a major cornerstone of democracy, due to their role in ensuring fairness and justice and to limit abuse of powers of governments and other state authorities and institutions.

In the case of **Rowe and Davis v the United Kingdom** [2000] ECHR, The European Court of Human Rights held:

> *"… in a criminal case, that both prosecution and defence must be given the opportunity to have knowledge of and comment on the observations filed and the evidence adduced by the other party."*

The Supreme Court in **The Queen v Liyanage and Others** (1963) 65 NLR 337, stated that:

> *"… on a trial upon Indictment, by the very essence of the pre-trial procedure, an accused person becomes aware of all the evidence relied upon by the Crown in support of the Indictment and which the Crown intends to place against him at the trial. He is entitled in law to know such evidence before he is called upon to plead to the Indictment. It is a right of his, inherent in that procedure."*

In this case with the glaring contradictions, the learned High Court Judge has come to his own conclusion that the 2nd ,4th and 6th charges had been proved beyond a reasonable doubt.

The Apex Court of Sri Lanka has established precedent in a number of cases stating that the defense would prevail when there is a contradiction that affects the core of the case.

When a witness gives evidence before the court upon oath, he or she is expected to tell the truth in a court of law. If the person gives contradictory evidence opposite to the statement, it is usually called a contradiction. It is the duty of the trial judge to unearth the truth and to arrive at a conclusion on whether an Accused person is guilty or not.

In the case of **State Rep. by Inspector of Police v. Saravanan** AIR 2009 SC 152 the Court held that:

> *"The contradictions/ omissions must be of such nature which materially affects the trial. Minor contradictions, inconsistencies, embellishments or improvements which do not affect the core of the prosecution case should not be made a ground to reject the evidence of the witness in its entirety."*

In the case of **Shamal Ghosh Vs. State of West Bengal** 2012 All. S. C. R, 1921the Court held that:

> *"Omission to state a fact whether it is a material contradiction or not is a question of fact. The discretion is left with the Court to determine whether it is a contradiction or material contradiction which renders the entire evidence of the witness untrustworthy and affects the case of prosecution materially.*

In the recent Court of Appeal judgment **CA HCC 190/2024,** dated 28.03.2025 it was noted that:

> "*It is essential to recognise that while discrepancies may exist, they do not necessarily reflect a lack of credibility and reliability; instead, it is quite clear that they stem from the complexities of human memory or the detailed*

nature of the events in question. Ultimately, these issues should not distract from the comprehensive truth the prosecution seems to establish.

It is essential to understand the implications of such discrepancies and the broader principles of justice that must prevail. Therefore, absence of a precise date should not be viewed as a lack of credibility rather it highlights the need for sensitivity and understanding the judicial process. Moreover, the cornerstone of a fair trial lies in the comprehensive examination of all evidence presented, rather than singular date. To dismiss a case solely due to an imprecise date undermines the principal of justice and the potential for truth to be revealed through crucial examination."

In the case of **Mohamed Niyas Naufer and others v. Attorney General** (Sc. 01/2006 decided on 08/12/2006), the Court observed that;

"when faced with contradictions in a witness's testimonial, the Court must bear in mind the nature and significance of the contradictions, viewed in light of the whole of the evidence given by the witness."

As the contradictory evidence given by PW1 and PW2 certainly affects the root of the prosecution's case, I conclude that the prosecution has not proved the case against the Appellants beyond a reasonable doubt. Therefore, the grounds urged by the Learned President's Counsel for the 1st Appellant have merit.

The Learned President's Counsel who appeared for the 2nd Appellant while endorsing the argument put forward by the learned President's Counsel on behalf of the 1st Appellant, strenuously argued that the charges against the 2nd Appellant in the indictment had not been proved beyond a reasonable doubt by the prosecution. As such, the 2nd Appellant cannot be charged for aiding and abetting the 1st Appellant in committing the alleged crime.

As the prosecution has failed to prove the charges beyond a reasonable doubt against the Appellants, I allow the appeal and acquit them from all the charges.

The Appeal is allowed.

The Registrar is directed to send this judgment to the High Court of Colombo along with the original case record.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J.

I agree.

JUDGE OF THE COURT OF APPEAL